

TERMS OF SERVICE FOR BENCHMARK BUILDING SOLUTIONS LTD

Effective Date: October 1, 2025

Contact Email: info@bbsltd.co.ke

1. Acceptance of Terms

By accessing or using Benchmark CRM or any services provided by Benchmark Building Solutions Ltd ("we," "our," or "us"), you agree to be bound by these Terms of Service and our Privacy Policy. If you do not agree, please do not use our services.

2. Scope of Services

Benchmark CRM is a Meta-integrated app that sends automated WhatsApp notifications to clients regarding project progress. It does not offer direct messaging, data collection, or transactional services. All project data originates from our internal system, governed by a separate Data Privacy Agreement signed during onboarding.

3. Eligibility

You must be at least 18 years old and authorized to represent a business entity to use Benchmark CRM. By using our services, you confirm that you meet these requirements.

4. User Responsibilities

You agree to:

- Provide accurate business credentials when connecting via Meta
- Use the app only for lawful purposes
- Not interfere with or disrupt the app's functionality or security

5. Data Use and Privacy

We do not collect personal data through Benchmark CRM. Any data accessed via Meta (e.g., Business Page ID, WhatsApp Business Account ID) is used solely to enable notification delivery. For broader data handling, refer to our Privacy Policy and the signed Data Privacy Agreement.

6. Intellectual Property

All content, trademarks, and technology used in Benchmark CRM are the property of Benchmark Building Solutions Ltd or its licensors. You may not copy, modify, or distribute any part of our services without written consent.

7. Service Availability

We strive to maintain uninterrupted service but do not guarantee uptime or error-free operation. We reserve the right to modify, suspend, or discontinue the app at any time without notice.

8. Limitation of Liability

To the maximum extent permitted by law, Benchmark Building Solutions Ltd shall not be liable for any indirect, incidental, or consequential damages arising from your use of Benchmark CRM.

9. Termination

We may suspend or terminate your access to Benchmark CRM if you violate these Terms or misuse the app. You may also discontinue use at any time.

10. Governing Law

These Terms are governed by the laws of Kenya.

11. Changes to Terms

We may update these Terms periodically. Continued use of Benchmark CRM after changes are posted constitutes acceptance of the revised Terms.

8. Contact

For questions or concerns,

contact: Kelvin Rimui

Email: info@bbsltd.ke

Address: Room F10, 1st Floor, Residential Wing, K-Unity Building, Kiambu Town, Kenya